

		California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (<i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) Thus, leave to amend to more clearly state a plaintiff's theories of liability should be liberally allowed. (<i>Rainer v. Buena Community Memorial Hospital</i> (1971) 18 Cal.App.3d 240, 253-254.) This liberality only applies so long as there is no prejudice to the opposing party. (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Defendants seek leave to amend their Answers to the First Amended Complaint to delete the affirmative defenses of consent and justification and good faith, to add several new affirmative defenses, to add specific sections of the Code of Civil Procedure to their statute of limitations affirmative defense, and to add new factual allegations identified in discovery. If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (<i>Higgins v. Del Faro</i> (1981) 123 CA3d 558, 564-565) Plaintiffs did not oppose the motion. As Defendants have complied with CRC 3.1324 and have met the requirements for seeking leave to amend, the motions are granted. Defendants are ORDERED to file their Amended Answers within 5 days of this ruling. Moving parties shall give notice of this ruling.
7	Hamidi vs. Mar Ranch, LLC	TENTATIVE RULING: <u>Motion to Be Relieved As Counsel of Record</u> The Law Office of Paul Mankin, APC moves to be relieved as counsel of record for Plaintiff Nataliia Zadorkina Hamidi. The motion is GRANTED. The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving counsel shall give notice of this ruling.

8	Hernandez vs. Ford Motor Company	TENTATIVE RULING: For the reasons set forth below, Plaintiff Elias Varela Hernandezs motion for attorneys’ fees is GRANTED, subject to the deductions below. The court awards Plaintiff attorneys’ fees in the total amount of \$27,375.00. <u>Basis for Attorneys’ Fees</u> A party seeking an award of fees has the burden of establishing entitlement to an award, documenting the appropriate hours spent, the hourly rates, and that the fees sought were reasonable and necessary to the conduct of the litigation. (<i>569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 432). Civ. Code § 1794, subd. (d) provides: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Defendant does not dispute that the parties settled this matter and agreed to reasonable attorneys’ fees pursuant to Civ. Code § 1794, subd. (d). Rather, Defendant disputes that Plaintiff has met its burden of proving that the fees were incurred, and disputes the amount incurred for the reasons set forth below. <u>Reasonable Hourly Rate</u> The lodestar method for calculating attorneys’ fees applies to any statutory attorneys’ fees award, unless the statute authorizing the award provides for another method of calculation. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; see also <i>K.I. v. Wagner</i> (2014) 225 Cal.App.4th 1412, 1425.) When determining a reasonable attorneys’ fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998).
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The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.).

The hourly rates for the attorneys who worked on this case are as follows: (1) Kevin Jacobson (2024 rate of \$525/hr. and 2025 rate of \$550/hr.); (2) Matthew Treybig (2024 rate of \$425/hr. and 2025 rate of \$500/hr.); (3) Hadi Gerami (2025 rate of \$550/hr.) (4) Michael Jahangani (2025 rate of \$350/hr.); (5) Kayla Corrick (2025 rate of \$350/hr.); (6) Ellen Zakharian (2025 rate of \$400/hr.); and (7) Stephanie Hovhannisyan (2026 rate of \$395/hr.) (See Jacobson Decl. ¶¶ 5-44. Ex. 1-25.)

Plaintiff set forth the background of each attorney justifying these rates. Mr. Jacobson worked as an attorney from 2013 and co-founded Quill & Arrow, LLP in 2019. (Decl. of Jacobson, ¶ 4). His requested rate or similar rates has been approved in other cases. (See Decl. of Jacobson, ¶¶ 12-21).

The court finds these rates reasonable.

Lodestar multiplier

In determining whether to apply a multiplier, the court considers a variety of factors such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (*Galbiso*, 167 Cal.App.4th at 1089.)

Plaintiff requests a multiplier enhancement of 1.25, contending that Plaintiff's counsel obtained an "excellent outcome", and endured "substantial risks posed by this litigation". However, this appears to be a routine lemon law case, and the case settled within a year of the complaint being filed.

The court declines to award a multiplier.

Hours Reasonably Expended

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California*

State University (2005) 132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are also "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements."].)

In this matter, Mr. Jacobson attached the billable entries to his declaration. (See Decl. of Jacobson, Ex. 27).

The Court will reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816 [party seeking attorney fees has the "burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount" (internal quotation marks omitted)]; *Christian Research Institute v. Ahor* (2008) 165 Cal.App.4th 1315, 1326-29 [affirming award for 71 hours of attorney time in case where attorneys sought fees for over 600 hours].) Fee award amounts are matters within the trial court's discretion: the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum, supra*, 24 Cal.4th at 1132.)

In challenging attorney fees as excessive, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 564.)

Defendant challenged the various time entries by Plaintiffs' counsel on the following basis:

1. Block Billing

Defendant selected six specific entries that Defendant contends are block billing entries, which obscures how much time was spent on each task and makes it difficult to assess reasonableness of fees. (See Decl. of Cabibi, Ex. A). However, with the exception of one entry, the court finds that these entries are permissibly worded, and the "block" billing of tasks were actually various steps related to a single task. (For example, the 11/1/24 entry by Mr. Jacobson which reads: "Review and analyze Defendant Ford Motor Co.'s Response to Meet and Confer letter and SPO"). The only block billing entry selected by Defendant which relates to multiple different tasks is the 4/10/24 entry by Mr.

	Jacobson which reads: “Review consultation notes with Plaintiff regarding merits of the potential legal case, strengths and weaknesses. Review client repair orders, sales contracts, communications with manufacturer, and repair summary for initial case review.” However, the total amount billed for this task is .2, which is reasonable. Thus, the court finds that these entries are descriptive and reasonable. 2. <u>Vague Billing Entries</u> Defendant selected three specific entries that Defendant argues are vague and broadly worded, giving no further insight. The court finds the following to be vague, particularly here where counsel is seeking more than .1 for each entry: “5/15/2025 HG Communication with Client 0.3 \$550.00 \$165.00” “5/29/2025 KJ Communication with Client 0.30 \$550.00 \$165.00” The court reduces each entry by .1 each. 3. <u>Duplicative Entries</u> Next, Defendant selects 12 entries that it contends are duplicative of work performed. The following entries on 10/28/24 by timekeeper “MT” appear to be duplicative of the same entries on 7/30/24 by timekeeper “MT”: 10/28/2024 MT Review and analyze Defendant’s Responses and Objections to Plaintiff’s Request for Production, Set One. 0.60 \$425.00 \$255.00 10/28/2024 MT Review and analyze Defendant’s Responses and objections to Plaintiff’s Requests for Admissions. 0.40 \$425.00 \$170.00 10/28/2024 MT Review and analyze Defendant’s answers and objections to Plaintiff’s Special Interrogatories, set one 0.80 \$425.00 \$340.00 10/28/2024 MT Review and analyze Defendant’s Answers and objections to Plaintiff’s Form Interrogatories 0.40 \$425.00 \$170.00 Accordingly, the court deducts \$935 from these entries.
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		4. <u>Excessive Time Spent</u> Next, Defendant selects 30 entries that Defendant contends was excessive in the amount of time spent. The following two entries appear to be excessive/unreasonable: 5/30/2025 HG Prepare for and draft hearing summary for vacated pre-trial conference 0.60 \$550.00 \$330.00 (the court will reduce to .1) 2/6/2026 SH Draft declaration is support of motion for attorneys' fees 3.70 \$395.00 \$1,461.50 (the court will reduce to 2.5) The court finds the other entries to be reasonable. The court deducts a total of \$749. 5. <u>Anticipated Billing for Opposition and Reply</u> Finally, Defendant contends that the requested amount of \$4,000 for additional anticipated attorney fees in connection with reviewing Defendant's Opposition to Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses; preparing Plaintiff's Reply brief; and attending the hearing on this Motion is excessive. The court agrees, and awards \$2,500 for this work only. Plaintiff shall give notice.
9	Hoang vs. CIT Bank, N.A.	TENTATIVE RULING: For the reasons set forth below, the motion by Plaintiff Nam Neil Hoang for reconsideration of the court's prior order is DENIED with prejudice. "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Cal. Civ. Proc. Code § 1008 (a).)